



POLICE DEPARTMENT

April 22, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202207290 (Incident Date: October 27, 2022) regarding Police Officer Joah Pagan, Tax No. 943643 (DADS No. 2023-28955)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202207290, pertaining to Police Officer Joah Pagan. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Police Officer Pagan would be detrimental to the Police Department's disciplinary process.

In this matter, CCRB has requested to issue Charges and Specifications for an allegation of making a false statement. The Police Commissioner has determined that CCRB failed to prove that Police Officer Pagan intentionally made a false statement that was material to the outcome of the Traffic Violations Bureau hearing. Police Officer Pagan's body worn camera captured the complainant's vehicle speeding past the right side of Police Officer Pagan's vehicle on a single lane road. Police Officer Pagan was in traffic, and approximated that the complainant's vehicle was driving forty (40) miles per hour and stated, there was "barely enough room for a car to fit" between his vehicle and the sidewalk. Once the complainant passed Police Officer Pagan's vehicle, he further observed the complainant cut off other vehicles at the intersection. When the complainant cut the vehicles off, traffic was moving since the traffic signal turned green. Police Officer Pagan initiated his lights and siren, followed the complainant's vehicle, and pulled the complainant over. Police Officer Pagan explained to the complainant it was a one lane road and issued one summons for

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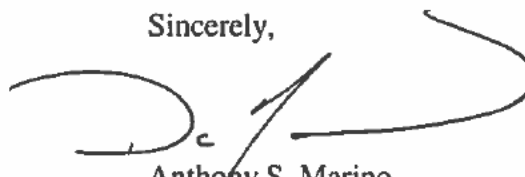
unsafe passing. At traffic court, Police Officer Pagan explained that during the vehicle stop, another motorist pulled up behind him, and thanked him for making the stop, because vehicles commit the same unsafe passing all the time. Police Officer Pagan also stated he issued twelve (12) additional summonses for moving violations on the same day.

CCRB asked if he testified at traffic court, that a “bystander stopped you and thanked you for stopping the complainant.” Police Officer Pagan responded in the affirmative. CCRB did not ask any further clarifying questions. It is unclear when this interaction occurred. However, regardless of Police Officer Pagan’s statement that a bystander stopped to thank him, said information was not material to the outcome of the hearing and it was unreasonable to draw such a conclusion. As stated above, the complainant’s unsafe passing was captured on the body worn camera footage, and the same was presented during the hearing, therefore supporting the judge’s decision to find the complainant guilty.

As provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to impose no disciplinary action against Police Officer Pagan for the alleged misconduct. Over the course of his seventeen (17) year career, Police Officer Pagan has no prior substantiated CCRB allegations and no prior formal discipline with the New York City Police Department.

In addition, Title 38-A of the Rules of the City of New York provides that, “[t]he Police Commissioner may also request further investigation or development of record.” Given the questions of accuracy of the CCRB’s investigation as well as its resultant evidentiary findings, this matter should be reopened and reevaluated by CCRB.

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner’s Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

April 26, 2024

The Honorable Edward Caban
Police Commissioner
New York City Police
Department One Police Plaza
New York, New York 10038

RE: CCRB vs. PO Joah Pagan
Case No. 202207290

Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated April 22, 2024 informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to retain jurisdiction over this matter, intends to impose no disciplinary action against Police Officer Pagan for the alleged misconduct, as well as, the Commissioner’s request that the matter be reopened and reevaluated.

While the CCRB disagrees with your conclusions and acknowledges that you are the final arbiter of discipline in this matter, it cannot reconsider the matter at this time because of the rules governing reopen and reconsideration requests.

Respectfully submitted,

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board



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April 26, 2024

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Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

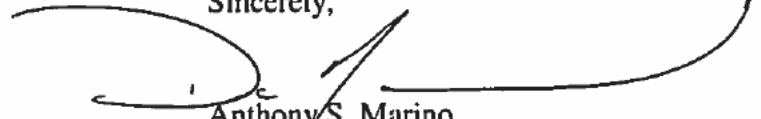
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Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated April 26, 2024, regarding the CCRB case involving Police Officer Joah Pagan and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer Pagan, for the reasons expressed in my April 22, 2024 letter.

Therefore, the Police Commissioner affirms his decision to exercise Provision Two of the Memorandum of Understanding and now directs that no disciplinary action be imposed for the alleged misconduct.

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office